



The Highland
Council
Comhairle na
Gàidhealtachd

Human Resources
Goireasan Daonna

Attendance Management Policy

Poileasaidh Stiùireadh Làthaireachd



Contents

Clàr-innse

Introduction	3
Policy Purpose	3
Policy in Practice	4
Equality and Diversity	4
Legislation	4
Monitoring	5
Appendix 1	6
Highland Council Attendance Management Procedure	6
Quick Links	9



Introduction

A high level of attendance at work is essential to the effective functioning of the Council, to the maintenance of our values, and particularly to the provision of quality services. To secure such attendance requires commitment from managers, employees and trades unions.

Policy Purpose

High absence rates are costly, disruptive, reduce morale and lower Service standards. A policy on the management of attendance is essential to secure both high levels of attendance, and a consistent, fair and reasonable approach towards staff.

- Elected members, managers, employees and trade unions are committed to working in partnership to support a highly engaged and healthy workforce committed to attaining high attendance levels.
- All partners are committed to the maintenance of the health, safety and wellbeing of staff and the promotion of occupational health.
- All partners are committed to the aim of maximising attendance at work.
- The Chief Executive, Service Executive Chief Officers (ECOs), managers and supervisors are accountable for the management of attendance in a fair and consistent way.
- It is the responsibility of Service ECOs to ensure that accurate attendance records are kept for each employee.
- It is the responsibility of the manager to inform employees when they reach half pay or nil pay.
- Managers and supervisors will receive appropriate training, guidance and support to manage attendance.
- Employees will be aware of and exercise their responsibilities in the event of absence from work. Employees will be made aware of these responsibilities at induction and the Employee Review & Development programme.
- All partners support the use of data monitoring to review and manage levels of absence.
- All partners recognise of the importance of non-discriminatory practices.

Policy in Practice

For further Guidance please refer to the Attendance Management Guidance linked at the bottom of this Policy and on the [HR website](#).

Where sickness absence is genuine and requires to be managed formally, the following procedure at [Appendix 1](#) will be used. Non genuine absence and related misconduct will be managed under the [Disciplinary Procedure](#).

Guidance, information and tools will be developed and maintained in partnership through the Highland Council Partnership Framework. In relation to attendance management this guidance will:

- Inform employees what to do in the event of absence
- Provide employees with clear information on the issue of remuneration during sickness absence.
- Guide management action in the event of absence including training/briefing.
- Advise on the procedures to be followed in the event of medical examination.
- Ensure accurate recording and provision of information to assist the management of absence.
- Address the management of unauthorised absence.
- HR will support both the employee and the manager throughout the attendance management process to ensure that the process is followed correctly.

Equality and Diversity

This policy endorses the Equality & Human Rights Commission's (EHRC) principles which apply to all employees of The Highland Council, regardless of any of the protected characteristics (Age, Disability, Gender Reassignment, Marriage and Civil Partnership, Pregnancy and Maternity, Race, Religion or Belief, Sex or Sexual Orientation).

Legislation

The development and application of this policy is guided by:

- Equality Act 2010
- Employment Rights Act 1996

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- Employment Relations Act 1999
 - Employment Act 2008
 - Working Time (Amendment) Regulations 2007
 - Employment Rights Act 2025

Monitoring

The application of this policy will be monitored through the Highland Council Partnership Framework and the Corporate Resources Committee.

To ensure that the policy is operated effectively and achieves its objectives, Services will be subject to periodic random audit by officers directed by the Chief Executive and will be required to produce regular statistical returns. Such audits and reports will include the examination of absence rates and action taken to improve attendance.

Service ECOs will regularly review aggregated statistics, to assess levels and trends of absence, and arrange for quarterly submissions to be made to the Chief Executive through the Service Quarterly Performance Reviews.

Appendix 1

Highland Council Attendance Management Procedure

Where sickness absence is genuine, and requires to be managed formally, the following procedure will be used.

First Attendance Review

The manager should meet formally with the employee. The employee should be informed of their right to be accompanied at this meeting.

The aim of the meeting is to review their attendance and where appropriate develop a plan to support improved attendance. This plan will include specific actions, targets and timescales.

Where appropriate the discussion should include consideration of referral to the Occupational Health Service, workplace adjustments or redeployment opportunities.

The manager should write to the employee summarising the discussion and setting out the improvement plan.

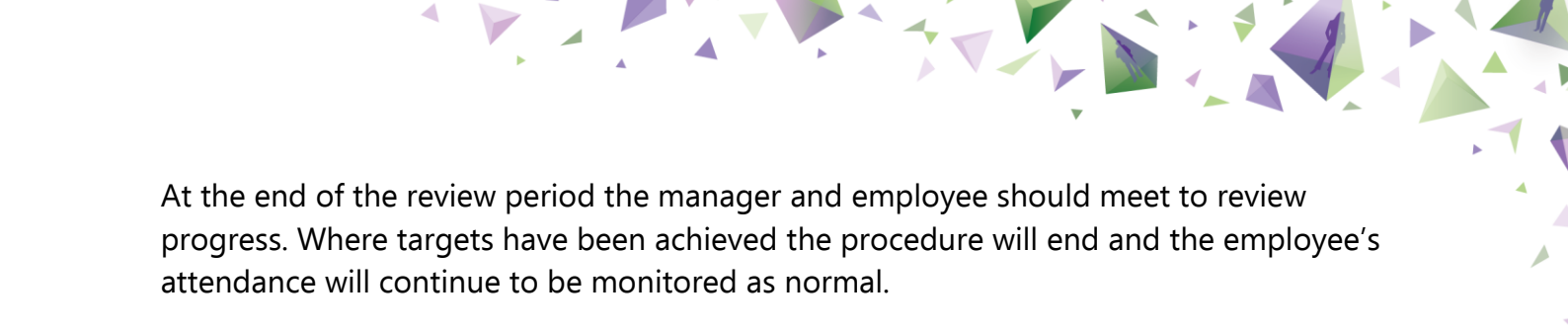
At the end of the review period the manager and employee should meet to review progress. Where targets have been achieved the procedure will end and the employee's attendance will continue to be monitored as normal.

Second Attendance Review

Where the first attendance review does not meet its aims the manager should meet formally with the employee. A representative from HR will be in attendance at the meeting, and the employee should be informed of their right to be accompanied.

The same procedure should be followed as during the first attendance review.

The manager should inform the employee that failure to improve attendance could lead to dismissal.



At the end of the review period the manager and employee should meet to review progress. Where targets have been achieved the procedure will end and the employee's attendance will continue to be monitored as normal.

Third Attendance Review

Where the second attendance review does not meet its aims the manager should meet formally with the employee. A representative from HR will be in attendance at the meeting, and the employee should be informed of their right to be accompanied. The aim of the meeting is to review the actions that have been taken to date to improve the employee's attendance and to consider whether any further actions should be considered.

The employee will have an opportunity to raise any mitigating circumstances.

Based on review of progress made, and the discussion at the meeting the manager will decide to approve final review period or recommend the dismissal of the employee.

The manager should write to the employee summarising their decision.

Attendance Hearing

The ECO or Head of Service should invite the employee to a hearing. The employee should be informed of their right to be accompanied at this hearing.

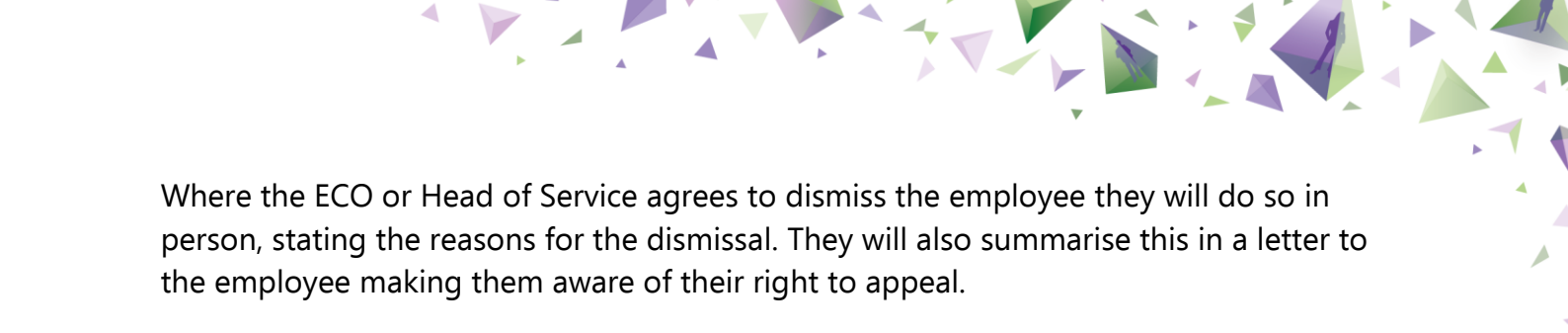
At the meeting the employee (or their representative) should be invited to state their opinion and views on their condition, likely return, and level of capability.

The manager should be invited to summarise the actions that have been taken to support the employee to improve their attendance. The manager should provide details of any advice provided by the Occupational Health Service.

The employee (or their representative) and the manager should be invited to discuss possible opportunities for redeployment.

The ECO or Head of Service should ask any questions of the employee and manager required to reach a decision.

Following the hearing the ECO or Head of Service will decide whether to accept the manager's recommendation to dismiss on grounds of capability.



Where the ECO or Head of Service agrees to dismiss the employee they will do so in person, stating the reasons for the dismissal. They will also summarise this in a letter to the employee making them aware of their right to appeal.

Appeals Hearing

Employees have a right to appeal against dismissal. The appeal should be submitted in writing to the ECO or Head of Service within 10 working days of receipt of the letter. Appeals will be heard by the Appeals Sub-Committee, and the appeal will end at this level within the Council.

Quick Links

The Hyperlinks listed here will redirect you to the related guidance, letters, information, and relevant organisations mentioned in this policy.

[HR Microsite](#)

[Attendance Management page](#)

[Disciplinary Policy page](#)

[Disability Confident](#)

[Employee Review and Development](#)



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